

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY
AUTHORITY, MUMBAI
NON-COMPLIANCE APPLICATION**

**In
COMPLAINT NO: CC006000000100488**

Meghana L Tolani

.... Complainant

Versus

Vidhi Realtors

.... Respondent

MahaRERA Registration No. P51800007949

Coram: Dr. Vasant Prabhu, Secretary, MahaRERA

Adv. Priyanka Pathak appeared for the Complainant.

Adv. Pooja Rathi appeared for the Respondent.

Order

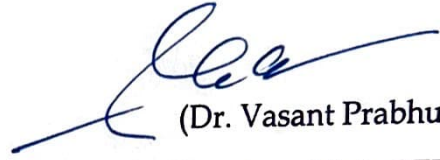
30th August 2023

(Through Video Conferencing)

1. The complainant abovenamed has filed the present application for non-compliance of the MahaRERA Order issued on 27/12/2019 in the Complaint No: CC006000000100488 (hereinafter referred to as the said complaint), by the respondent.
2. In the said complaint filed by the complainants, the respondent was directed to pay interest for delayed possession on amount of Rs. 45,74,191/- paid by the complainant from 01-07-2017 as prescribed under the provisions of Section 18 of the RERA. Further, the respondent was also directed to pay interest on Rs. 1,20,387/- paid on 04-12-2018, Rs. 1,86,581/- paid on 12-02-2019 and Rs. 1,84,353/- paid on 26-03-2019 from the dates of payment till the handover of possession of their booked flat. The complainants were also entitled to receive Rs. 20,000/- towards the cost of the complaint.

3. On the said non-compliance application, the hearing was held through video conferencing as per the MahaRERA Circular no. 27/2020 and MahaRERA Order No. 15/2020.
4. Notwithstanding the occurrence of six precedent hearings, the respondent, in contravention of the aforesaid order issued on 27/12/2019, failed to adhere thereto.
5. During the aforementioned hearing, the respondent submitted that as per the directions issued in the preceding hearing dated 26-07-2023, the respondent has prepared the financial calculation and an amount of Rs. 2,23,607/- has already been paid to the complainant. However, an amount of Rs. 12,00,000/- is still outstanding. Further, the respondent submitted that the schedule for repayment of the balance amount is still not finalized.
6. The complainant submitted that the respondent hasn't shared the timeline for payment of interest amount and therefore the complainant sought action against the respondent.
7. After hearing the arguments of both the parties, it is pertinent to note that the respondent has failed to comply with the order dated 27-12-2019 and the directions issued during the preceding hearing dated 26-07-2023. Hence, any further time granted to the respondent would lead to injustice to the complainant.
8. Therefore, the MahaRERA has no alternative but to proceed with action under Section 40 (1) of RERA against the respondent. It is therefore, directed to issue recovery warrant under Section 40 (1) of RERA read along with Rule 3 of the Maharashtra Real Estate (Regulation & Development) (Recovery of Interest, Penalty, Compensation, Fine Payable, Forms of Complaint & Appeals etc.) Rules, 2017, against the unsold inventory in the said project of the Respondent.

9. In view of the above, the present non-compliance application stands disposed of.



(Dr. Vasant Prabhu)

Secretary, MahaRERA

